

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Manyy Morochó	Team: Squad #14	CCRB Case #: 202309955	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 08/27/2023 7:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/27/2025	Precinct: 105
Date/Time CV Reported Mon, 10/23/2023 9:23 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 10/23/2023 9:23 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Nicholas Couvaris	00389	972589	105 PCT
2. PO Jose Gutierrez	01547	959678	105 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Jose Gutierrez	Force: Police Officer Jose Gutierrez tightly handcuffed § 87(2)(b)	A . Unable to Determine
B . PO Nicholas Couvaris	Abuse: Police Officer Nicholas Couvaris improperly used his body-worn camera.	B . Substantiated
C . PO Jose Gutierrez	Abuse: Police Officer Jose Gutierrez improperly used his body-worn camera.	C . Substantiated

Case Summary

On October 23, 2023, § 87(2)(b) filed this complaint via the CCRB's Call Processing System. On January 5, 2024, § 87(2)(b) complaint was closed pending litigation, and on January 14, 2025, § 87(2)(b) complaint was reopened pursuant to her request. The statute of limitations on this case expired on February 27, 2025.

On August 27, 2023, at approximately 7:30 p.m., PO Couvaris and PO Gutierrez, both of the 105th Precinct, responded to two 911 calls, one placed by § 87(2)(b) and the other placed by her landlord, at § 87(2)(b) home, located at § 87(2)(b) in Queens. § 87(2)(b) was placed under arrest pursuant to two probable cause I-Cards (BR 12) and PO Gutierrez then tightly handcuffed § 87(2)(b) (**Allegation A: Force, unable to determine**). After removing § 87(2)(b) to the police vehicle, PO Couvaris and PO Gutierrez removed their BWCs and failed to record their further investigative actions on scene (**Allegation (B) Abuse of Authority: substantiated; Allegation (C) Abuse of Authority: substantiated**).

Regarding § 87(2)(b) underlying I-Cards, § 87(2)(b) was arrested and charged with menacing in the 2nd degree, criminal mischief in the 3rd degree, and petit larceny (BR 11).

The investigation received body-worn camera (BWC) footage from Sgt. Berlingerio, PO Couvaris, and PO Gutierrez (BR 05-07), the relevant aspects of which are addressed in further detail below.

Findings and Recommendations

Allegation (A) Force: Police Officer Jose Gutierrez tightly handcuffed § 87(2)(b)

The investigation established the following facts: At the time of the incident, PO Couvaris and PO Gutierrez responded to two 911 calls (BR 01) regarding a landlord-tenant dispute at the location, one of which was placed by § 87(2)(b) and the other placed by her landlord. Upon arrival, the officers first spoke with § 87(2)(b) landlord outside of the building, followed by § 87(2)(b)

§ 87(2)(b) (BR 02) stated that she called 911 because her landlord pushed her and that when officers arrived, they looked at § 87(2)(b) ID, ran it, and told her she was under arrest. PO Gutierrez then placed § 87(2)(b) hands behind her back and handcuffed her extremely tightly. § 87(2)(b) was placed in the police vehicle, where she began to feel significant discomfort from her handcuffs. § 87(2)(b) complained to PO Gutierrez that her handcuffs were too tight and PO Gutierrez said they were fine. Upon her release from police custody, § 87(2)(b) continued to have pain and numbness in her left arm and wrist because of how tight the handcuffs were, and she sought medical treatment at § 87(2)(b) and § 87(2)(b) Hospital, § 87(2)(a) – PHL 18(6)

§ 87(2)(b) provided HIPAA release forms and her medical records documented the following: § 87(2)(a) – PHL 18(6)

At 7:02 in PO Gutierrez's BWC footage (BR 05), PO Gutierrez is captured grabbing § 87(2)(b) by the wrist and placing a single handcuff on her while explaining that she has two open I-Cards for her arrest due to criminal mischief. At 7:18, PO Gutierrez holds § 87(2)(b) by the left elbow and puts her left arm behind her back before letting go and reaching for her right arm. At 7:30, PO Gutierrez attempts to pull § 87(2)(b) right wrist behind her back as § 87(2)(b) holds her arm close to her right hip with her phone in hand. PO Couvaris stands in front of § 87(2)(b) and holds onto her right wrist for about three seconds with his right hand before PO Gutierrez places the second handcuff on § 87(2)(b) right wrist. At 7:44 PO Gutierrez attempts to grab § 87(2)(b) phone out of her hand as she holds on to it, keeping her arm by her hip. At 7:51, both officers ask § 87(2)(b) to let go of her phone and grab § 87(2)(b) phone out of her hand. At 7:54, PO Gutierrez

pulls § 87(2)(b) right arm behind her back and holds on to both of her wrists with his left hand while placing his right hand on her right shoulder, though his exact actions are not depicted due to the camera angle, and § 87(2)(b) is fully handcuffed at this point. § 87(2)(b) does not complain of any pain or state that the handcuffs are too tight. From 8:10 to 8:25, PO Gutierrez pulls out a small black rod-like tool and brings it towards § 87(2)(b) handcuffs followed by audible snaps. At 39:35 PO Gutierrez returns to the police vehicle and enters the driver's seat when § 87(2)(b) states, "You put the cuffs on too tight," to which PO Gutierrez replies, "They're not tight you were moving around too much, we'll be in the precinct in about five or 10 minutes." At 53:54, while taking § 87(2)(b) out of the police vehicle outside of the stationhouse, § 87(2)(b) is captured stating to both PO Couvaris and PO Gutierrez, "I can't feel my hand, it's literally blue and red." PO Gutierrez replies, "I could fit one finger in there" in regard to the tightness of her handcuffs. PO Couvaris walks ahead of the two at this point, opening the door to the stationhouse. § 87(2)(b) then states to PO Gutierrez, "You see where it's cutting into my wrist?" PO Gutierrez replies "Well if you don't move your hands... you're putting pressure on it ma'am." At no point after § 87(2)(b) initially complained about the handcuffs is PO Gutierrez captured retightening § 87(2)(b) cuffs.

At 39:22 on PO Couvaris' BWC footage (BR 06), PO Couvaris returns to the police vehicle and is re-adjusting his BWC back onto his uniform when § 87(2)(b) states, "I can't feel my left hand, it's numb, my hand is numb." At 1:00:42, at the precinct stationhouse holding cells, PO Couvaris is captured removing § 87(2)(b) handcuffs when she points at her left wrist and states, "This one is digging into my hand, my wrist." At 1:00:54, § 87(2)(b) extends her wrist forward and asks the officers present to look at the indent the handcuffs made on her wrist.

PO Gutierrez (BR 08) stated that after confirming § 87(2)(b) identity as being subject to the two open probable cause I-cards, she was placed under arrest, handcuffed and removed to the police vehicle. PO Gutierrez double-locked § 87(2)(b) handcuffs to ensure that they would not get any tighter. After reviewing his BWC footage, PO Gutierrez did not dispute that § 87(2)(b) alleged her handcuffs were too tight while she was inside the police vehicle. At no point did either PO Gutierrez or PO Couvaris tighten § 87(2)(b) handcuffs after hearing her complain about them.

PO Couvaris (BR 09) noted that when putting § 87(2)(b) in a cell, she drew his attention to an mark on her left wrist caused by the handcuff and that this was the only time § 87(2)(b) had mentioned her handcuffs to him.

It was undisputed that § 87(2)(b) was handcuffed pursuant to her arrest, and § 87(2)(b) medical records supported her claims that she sustained physical injury to her wrist as a result of being handcuffed. § 87(2)(g)

While the available body-worn camera footage was inclusive at capturing the exact moment that PO Gutierrez handcuffed § 87(2)(b) due to the camera angle, PO Gutierrez described that he properly placed and double-locked § 87(2)(b) handcuffs. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unable to determine**.

Allegation (B) Abuse of Authority: Police Officer Nicholas Couvaris improperly used his body-worn camera.

Allegation (C) Abuse of Authority: Police Officer Jose Gutierrez improperly used his body-worn camera.

It is undisputed that after § 87(2)(b) was arrested and secured inside the patrol vehicle for transport, both PO Couvaris and PO Gutierrez removed their body-worn cameras and placed them in the car facing § 87(2)(b)

In her CCRB interview (BR 02), § 87(2)(b) stated after placing their body-worn cameras in the car to observe her, PO Couvaris and PO Gutierrez went and spoke with her landlord for approximately 30 minutes.

At 8:17 on PO Gutierrez's BWC footage (BR 05), shows that at 14:54, PO Gutierrez removes his BWC and places it on the dashboard of the patrol vehicle facing toward § 87(2)(b) who is sitting handcuffed in the back seat. At 15:13, PO Couvaris also removes his BWC and places it on the dashboard to capture § 87(2)(b). After this, both PO Gutierrez and PO Couvaris step away from the patrol vehicle for approximately four minutes, until at 20:00, PO Couvaris briefly returns, grabs a form, and leaves again, before returning approximately 12 minutes later at 32:15 to obtain more paperwork before walking away again. By 39:23, both PO Gutierrez and PO Couvaris return to the patrol vehicle and proceed to the stationhouse.

PO Couvaris' BWC (BR 06) was consistent with PO Gutierrez's and shows no new angles.

PO Gutierrez (BR 08) stated that he had a conversation with § 87(2)(b) § 87(2)(b) guest, which he believed occurred prior to him removing the BWC from his uniform. During the interaction with § 87(2)(b) the officers determined that § 87(2)(b) landlord was not the aggressor during the incident. Regarding his removal of his BWC, PO Gutierrez stated that he did this to record § 87(2)(b) while she was inside the patrol vehicle.

PO Couvaris (BR 09) stated that he placed his BWC in the patrol vehicle to record § 87(2)(b) after which point he then went to speak with § 87(2)(b) landlord to file a lost/stolen report.

Per NYPD Patrol Guide Procedure 212-123 (BR 13), officers must activate their body-worn camera videos prior to engaging in any police action and must record continuously, until investigative, enforcement, or other police action is concluded.

Although PO Gutierrez stated that he spoke to § 87(2)(b) about the dispute between § 87(2)(b) and her landlord, due to both officers leaving their body-worn cameras in the car to record § 87(2)(b) the available BWC footage did not capture this § 87(2)(g)

§ 87(2)(b) PO Couvaris described that after he removed his BWC, the officers filed a lost/stolen report and spoke to § 87(2)(b) landlord. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** and **C** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party.
- PO Couvaris has been a member of service for three years and 11 months. This is the first complaint to which he has been subject.
- PO Gutierrez has been a member of service for nine years and 11 months and has been the subject of eight closed complaints and 21 allegations, one of which was substantiated.
 - 202007689 involved one substantiated "Force - Physical force (dragged/pulled)" allegation for which the Board recommended Command Discipline A. The NYPD imposed no penalty.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 9th, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident. (BR 10)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 14

Investigator:	Morocho	Inv. Manyy Morocho	11/10/2025
	Signature	Print Title & Name	Date

Squad Leader:	Cassandra Fenkel	IM Cassandra Fenkel	11/12/2025
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date